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Farewell Froot Loops? California bill would ban some chemicals from being used in school foods

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Author: Andrew Sheeler, The Sacramento Bee | Section: capitol_alert | 1057 Words
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Good morning and welcome to the A.M. Alert!

NEW BILL COULD BAN FROOT LOOPS, FLAMIN' HOT CHEETOS FROM CALIFORNIA SCHOOLS

Get ready for another food fight in the Legislature, as lawmakers weigh a potential ban on certain chemical food additives from being used in food served in California schools.

It's a follow-up effort for Assemblyman Jesse Gabriel, D-Encino, from last year's successful AB 418, the California Food Safety Act, which banned a number of chemicals from being used in food sold in California — the infamous "Skittles ban" bill, which didn't ban Skittles but did ban a chemical ingredient found in the popular candy.

AB 2316, Gabriel's new bill, extends the ban to Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2 and Green Dye No. 3, as well as titanium dioxide — chemicals that have been linked to causing a number of behavioral problems in children. The European Union currently bans the sale of food with titanium dioxide in it because of the health issues it is known to cause.

While Gabriel stressed that his bill doesn't ban any particular food products, it would de facto ban the sale of products including Froot Loops and Flamin' Hot Cheetos from being served in California schools, unless the makers of those products substituted the prohibited chemicals with safer alternatives, he said.

AB 2316 is being met with pushback from some industry groups, including the National Confectioners Association, which issued a statement Tuesday in response to the bill.

"It's time for (Food and Drug Administration) Commissioner (Robert) Califf to wake up and get in the game. These activists are dismantling our national food safety system state by state in an emotionally-driven campaign that lacks scientific backing. FDA is the only institution in America that can stop this sensationalistic agenda which is not based on facts and science," the group said in a statement.

The group pointed out that there is no FDA-approved alternative to titanium dioxide to make sure food maintains shelf life, pigment and opacity.

The FDA hasn't assessed titanium dioxide's safety to use in food products since 1966, and some of the other chemicals included in the AB 2316 ban were first approved in the '30s.

Gabriel's AB 418 initially included a ban on titanium dioxide in all food products, but he said he pulled that language from the bill so that it would pass with bipartisan support, which it did.

Gabriel has several allies in the fight to get AB 2316 passed, including bill co-sponsors Consumer Reports and the Environmental Working Group.

And then there's celebrity chef Tom Colicchio.

Though Colicchio, who serves as head judge on the reality cooking TV show Top Chef, doesn't live in California, he

threw his star power behind AB 2316 in a press conference Tuesday, where he described the efforts he and his wife take to provide safe and healthy food for their children.

“All of the work we do at home will be for nothing if they go to school and there’s no one making sure that the food is safe,” he said.

Colicchio and Gabriel both said that they would like to see a federal ban on these chemicals being used in food products, but that California is a good place to start.

“In the absence of federal action, the states, states like California, have no choice but to step up and lead,” Gabriel said.

PERSONAL FINANCE INITIATIVE HAS MORE THAN ENOUGH SIGNATURES, SUPPORTERS SAY

It’s looking like Californians will get to decide this November whether to require high school students to complete a financial literacy course before they can graduate.

Supporters of the California Personal Finance Initiative, as they are calling it, say they have collected far more signatures for the proposed ballot measure than they needed.

To get on the November ballot, they must get 546,651 valid signatures — supporters say they have collected nearly 900,000.

“The pace at which Californians signed on to this measure, which would guarantee California High School students a personal finance course prior to graduation, is a testament to the popularity of this commonsense ballot proposition,” said Tim Ranzetta, a proponent of the measure.

State Controller Malia Cohen, who also supports the proposed measure, called it a critical one for voters to pass.

“Providing essential financial literacy education to every high school student is a key step to ensuring equitable access to vital life skills regardless of their background or location,” she said.

The California Secretary of State’s Office has until May 8 to determine whether the proposed initiative has met the signature requirement.

GARVEY SENATE RUN LIKELY WON’T GET NATIONAL SUPPORT

Via David Lightman...

It sure doesn’t sound like the national Republican Senate election committee is eager to pour money and manpower into the California Senate race.

The race will pit Republican Steve Garvey, a former baseball all-star, against Rep. Adam Schiff, D-Burbank. Schiff has a big lead in recent polls.

The Bee asked Sen. Steve Daines, R-Montana, chairman of the National Republican Senatorial Committee Tuesday if the group considers the race winnable.

“Steve Garvey is great,” Daines said. “He’s got a great name there in California but look, California is a very blue state. It’s going to be a tough race.”

But will the committee put more resources into the race than it expected? “We’ll watch every race and see what tightens up and what doesn’t,” Daines said. “I was a Steve Garvey fan many many years ago and I still am today.”

Republicans need a net gain of one Senate seat to win control of the chamber if a Republican becomes president. If President Joe Biden is re-elected, Republicans would need two seats for control.

California last elected a Republican to the Senate in 1988.

QUOTE OF THE DAY

“When it comes to fire drills, we are not filling the halls with smoke and turning up the thermostat. We should not be doing the same to our kids when it comes to active shooter drills.”

- Assemblyman Chris Ward, D-San Diego, in a statement introducing a bill, AB 1858, that would set guidelines to rein in active shooter drills in California schools.

Best of The Bee:

Another round of ballots are due in California’s 20th Congressional District through March 19, this time to pick a representative for a seven-month term, via Gillian Brassil.The current vote count for Gov. Gavin Newsom’s Proposition 1 remains deadlocked, but opponents on Tuesday conceded the ballot measure will “likely pass, even if by a razor-thin margin,” via Lindsey Holden.

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